



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

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SB SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 33RD REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON MARCH
17, 2026

PRESENT:

Hon. Jane V. Plaza Municipal Vice- Mayor/
Presiding Officer

REGULAR SANGGUNIANG BAYAN MEMBERS:

Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Daniel A. Tejol		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
Hon. Michael C. Escuyos		SB Member

ON OFFICIAL BUSINESS:

EX-OFFICIO MEMBERS:

Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ORDINANCE NO. 40
Series of 2026

**"AN ORDINANCE REQUIRING ALL PUBLIC MARKET VENDORS AND GROCERY STORES SELLING FISH,
MEAT AND AGRICULTURAL PRODUCTS TO DISPLAY PRICE TAGS, PROVIDING PENALTIES FOR
VIOLATIONS AND FOR OTHER PURPOSES IN THE MUNICIPALITY OF CARMEN, SURIGAO DEL SUR"**

Author: Hon. Rencio P. Valeroso
Co- Author: Hon. Nilo S. Bigno
Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, the Municipality of Carmen recognizes its duty to promote consumer welfare and protect the public from unfair and deceptive trade practice;

WHEREAS, the Public Market vendors and grocery stores selling fish, meat and agricultural products play a vital role in ensuring food availability and economic activity within the municipality;

WHEREAS, the absence of clearly displayed price tags on goods sold in public markets and groceries stores has resulted in instances of confusion, inconsistent pricing, misunderstanding and possible over pricing to the prejudice of consumers;

WHEREAS, transparency in pricing is essential to promote fair competition among vendors, strengthen consumer confidence and ensure informed purchasing decisions;

WHEREAS, requiring the proper and visible display of price tags on fish, meat and agricultural products will foster accountability, fairness and orderly market operations;

WHEREAS, there is a need to establish appropriate penalties for violations of this requirement to ensure compliance and effective enforcement of the Ordinance;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

SECTION 1. Title- This Ordinance shall be known as the "Price Tag Display Ordinance of the Municipality of Carmen, Surigao del Sur."

SECTION 2. Declaration of Policy- It is hereby declared the policy of the Municipality of Carmen to promote consumer protection, transparency in trade, fair pricing practices and public welfare by requiring the proper display of prices of fish, meat and agricultural products sold within the municipality. The Local Government recognizes the right of consumers to be informed of the prices of goods offered for sale and to be protected against deceptive, unfair and unconscionable sales practices.

SECTION 3. Coverage- This Ordinance shall apply to:

1. All vendors, stall holders, lessees, concessionaires and sellers operating within all public markets in Carmen.
2. All grocery stores and similar retail establishments within the territorial jurisdiction of the Municipality of Carmen that sells fish, meat and agricultural products.

SECTION 4. Definition of Terms- For purposes of this ordinance, the following terms shall mean:

1. **Agricultural Products-** all farm produce offered for sale for human consumption, including but not limited to vegetables, fruits, root crops, grains, legumes and other similar products whether fresh, dried, or minimally processed.
2. **Fish-** all aquatic food products intended for human consumption, including fresh, chilled, frozen smoked, or processed fish, shellfish, crustaceans and other marine or freshwater species.
3. **Meat-** edible portions of livestock, poultry and other animals intended for human consumption, whether fresh, chilled, frozen or processed.
4. **Vender-** any person, stall holder, lessee, concessionaire, or authorized seller engaged in the retail sale of fish, meat or agricultural products within the public market or within the territorial jurisdiction of the Municipality of Carmen.
5. **Public Market-** the Municipal Market and any satellite or government operated market facility established, maintained or supervised by the Local Government Unit of Carmen, Surigao del Sur.

6. Grocery Store- any privately owned retail establishment operating within the Municipality of Carmen that sells fish, meat, agricultural products and other food items directly to consumers.
7. Price Tag- a clearly written, printed, or digitally displayed label attached to, place on, or positioned near a product indicating the selling price per unit of measure (per kilogram, per piece, per bundle, or other applicable unit) which must be visible and legible to the consumers.
8. Display of Prices- the act of prominently showing the price of goods through the use of price tags or signages in such a manner that customer can easily read and determine the cost without having to inquire from the vendor.
9. Overpricing- the act of selling goods beyond the price indicated on the displayed price tag or beyond any price ceiling that may be imposed by law or competent authority.
10. Misrepresentation of Price- the act of displaying a price different from the actual selling price charged to the consumer.
11. Inspection Authority- the Municipal Market Administrator, Municipal Treasurer's Office, Business Permits and Licensing Office (BPLO), Municipal Agriculture Office, or any duly authorized representative tasked to monitor and enforce compliance with this ordinance.
12. Violation- any act or omission that contravenes any provision of this ordinance, including failure to display price tags, display of illegible or misleading price tags, or charging a price different from the posted price.

SECTION 5. Mandatory display of price tags-

- A. All covered vendors and grocery stores shall display price tags on all fish, meat and agricultural products offered for sale.
- B. Price tags shall be:
 - be clear, visible and legible
 - indicate the price per standard unit of measure
 - be updated whenever there is a change in price
 - reflect the exact price to be charged to the consumer
- C. No seller shall charge a price higher than that indicated on the displayed price tag.

SECTION 6 Prohibited Acts- It shall be unlawful to:

- a. Sell covered products without a displayed price tag.
- b. Display illegible, misleading, or inaccurate price tags.
- c. Charge a price different from the posted price.
- d. Remove or conceal price tags during business hours.
- e. Refuse inspection by authorized municipal personnel;

SECTION 7. Enforcement- The Municipal Market Administrator, Business Permits and Licensing Officer, Municipal Treasurer, Municipal Agriculturist and other duly authorized personnel shall monitor compliance with this ordinance. The enforcers are authorized to:

1. Conduct regular and surprise inspections
2. Issue written warnings for first- time minor violations

- 3. Recommend the imposition of fines and penalties
- 4. Recommend suspension or revocation of business permits for repeated violations

SECTION 8. Penalties- Any person found violating this ordinance shall be penalized as follows:

- First Offense - A fine of Five Hundred Pesos (Php500.00)
- Second Offense - A fine of One Thousand Five Hundred Pesos (Php1,500.00)
- Third Offense - A fine of Two Thousand Five Hundred Pesos (Php2,500.00) and suspension of business permits for up to seven (7) days.

SECTION 9. Due process- No penalty shall be imposed without giving the alleged violator the opportunity to be heard in accordance with existing laws and municipal regulations.

SECTION 10. Information Dissemination- The Municipality shall conduct information campaigns to inform vendors and business owners of the requirements of this ordinance prior to full implementation.

SECTION 11. Separability Clause- If any provision of this ordinance is declared unconstitutional or invalid other provisions not affected thereby shall remain in full force and effect.

SECTION 12. Repealing Clause- All ordinances, rules and regulations inconsistent with this Ordinance are hereby repealed or modified accordingly.

SECTION 13. Effectivity- This Ordinance shall take effect fifteen (15) days after posting in at least three (3) conspicuous places within the Municipality of Carmen.

ENACTED this 17th day of March, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
3-27-2026